

ORDER SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

Case No. Crl. Misc. No. 8323-B of 2020

Muhammad Iqbal and another

vs

The State and another

Sr. No.	Date of order	Order with signature of Judge, and that of parties or counsel, where necessary.
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- 04) 10.02.2021 Mr. Muhammad Ali Channar, Advocate for the petitioners.
Mr. Ansar Yaseen, Deputy Prosecutor General for the State with Iqbal S.I. with record.
Malik Muhammad Saleem, Advocate for the complainant.

Through instant petition, Muhammad Iqbal and Sajid *alias* Kali (petitioners/accused persons) have sought post-arrest bail in case arising out of F.I.R. No.189/2020 dated: 05.09.2020 registered under Sections: 302, 324, 148, 149, PPC (subsequently offences under Sections: 337-F(i), 337-F(iii), 337-F(vi), 337-A(i), 337-A(ii), 337-L(2) PPC also added) at Police Station: Jhok Utra, District: Dera Ghazi Khan.

2. After hearing learned counsel for the parties, learned Deputy Prosecutor General and going through the available record with their able assistance, it has been noticed that as per contents of F.I.R., petitioners have not caused any injury to Nasir (deceased of case); Muhammad Iqbal (petitioner No.1/accused) while allegedly equipped with pistol, made two firearm shots which hit at left leg of Arslan Bashir (one of the injured), whereas Sajid *alias* Kali (petitioner No.2/accused) allegedly equipped with pistol, also made two firearm shots which hit at left leg and right leg of Muhammad Sajid Abdullah (complainant of case).

It has been further noticed that Sajjad (co-accused) allegedly inflicted two stick blows at right eye and lip of Ahmad (one of the injured) and Muhammad Akbar (co-accused) allegedly gave blow with butt of Kalashnikov at left shoulder of Amir (one of the injured) and also gave blow with butt of *Kalashnikov* at left side of head of Khurram Iqbal (one of the injured), however, they both aforementioned co-accused persons were allowed post-arrest bail, in the case by this Court *vide* order dated: 25.11.2020 passed in Crl. Misc. No.6722-B of 2020 (copy whereof is appended with instant petition at Page No.14-15); Naveed (co-accused) who allegedly gave hatchet blow at forehead of Aamir (one of the injured) was granted post-arrest bail on 07.12.2020 by learned Additional Sessions Judge, Dera Ghazi Khan (copy whereof is appended with instant petition at Page No.19-20), Allah Wasaya

(co-accused) who made two firearm shots with *Kalashnikov* which hit at right leg of Amir (one of the injured) was granted post-arrest bail on 19.12.2020 by learned Additional Sessions Judge, Dera Ghazi Khan (copy whereof is appended with instant petition at Page No.37), whereas Muhammad Madni (one of co-accused) who made two firearm shots with pistol which hit at right leg of Muhammad Sajid Abdullah (complainant of case) was also granted post-arrest bail *vide* order dated: 14.12.2020 passed by learned Additional Sessions Judge, Dera Ghazi Khan (copy whereof is appended with instant petition at Page No.31-32). It goes without saying that learned Deputy Prosecutor General after going through available record and assisted by learned counsel for the complainant, apprises that aforementioned all bail granting orders are still intact and holding the field. Admittedly, role alleged against present petitioners in the F.I.R. is similar to the role alleged against Allah Wasaya and Muhammad Madni (co-accused persons, mentioned above).

As far as contention of learned Deputy Prosecutor General assisted by learned counsel for the complainant that during investigation concession was extended by Investigating Officer to Allah Wasaya and Muhammad Madni (co-accused persons, mentioned above), is concerned, same cannot create any distinction between the case of present petitioners and Allah Wasaya, Muhammad Madni (co-accused persons, mentioned above) for the purpose of bail because role alleged against all four of them, in the F.I.R., is similar/identical and in this regard, case of **“Zill-e-Husnain Tipu versus The State”** (2000 P.Cr.R. 602) can be safely referred and relevant portion whereof is hereby reproduced: -

“It is not disputed by the learned counsel for the State that three co-accused of the petitioner who had been attributed in the FIR a role identical to that of the petitioner have already been admitted to bail by the learned trial Court. The only distinction made by the learned trial Court in the matter of bail as far as the petitioner is concerned was that the petitioner had been found to be guilty in the final investigation conducted by the police. In the peculiar circumstances of this case it is difficult to hold that the said distinction was either justified or valid for the purposes of bail as there was absolutely no distinction available in the roles allegedly played by the petitioner and his co-accused in the occurrence in question.”

(emphasis added)

Therefore, case of present petitioners is also one of grant of bail in the light of “rule of consistency”.

Although, learned Deputy Prosecutor General under instructions of police official, present in Court and after himself going through available record apprises that .12 bore pistols have been allegedly recovered from present petitioners but no empty of any .12 bore weapon has been found from the place of occurrence, therefore, evidentiary value of said recovery shall be determined by the learned trial court after recording of evidence.

Learned Deputy Prosecutor General under instructions of police official, present in Court and after himself going through record further apprises that cross-version case was also registered on the application of Allah Wasaya (co-accused, mentioned above) against present complainant party, which is still intact and stood established during investigation. It goes without saying that injuries sustained by Allah Wasaya (complainant of cross-version) were suppressed in the F.I.R. of the case.

As far as sharing common intention/vicarious liability of the petitioners is concerned, same shall also be answered by the learned trial court after recording evidence. However, when aforementioned circumstances are taken into consideration in totality, then case of grant of post-arrest bail to the petitioners, has been made out.

3. In view of what has been discussed above, instant petition for grant of post arrest bail is **allowed/accepted**; Muhammad Iqbal and Sajid *alias* Kali (petitioners) are admitted to post-arrest bail in the case, subject to their furnishing bail bonds in the sum of Rs.1,00,000/- (Rupees one hundred thousand only) each with one surety each in the like amount to the satisfaction of learned trial court.

4. It is, however, clarified that observations mentioned above are just tentative in nature, strictly confined to the disposal of instant bail petition and shall have no bearing upon trial of the case.

(Farooq Haider)
Judge

“Approved for reporting”

(Farooq Haider)
Judge